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District of Utah (Central)
CIVIL DOCKET FOR CASE #: 2:22-cv-00421-DBP

Roy v. Howell et al
Assigned to: Magistrate Judge Dustin B. Pead
Cause: 42:1983 Civil Rights Act

Date Filed: 06/24/2022
Date Terminated: 12/08/2022
Jury Demand: Plaintiff
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff**Michael Anthony Roy**

represented by **Robert B. Sykes**
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V.

Defendant**Doug Howell****Defendant****Shaun Lott****Defendant****Zac Robinson**

represented by **Heather S. White**
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Defendant**Brandon Johnson**

represented by **Heather S. White**
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

LaShel Shaw
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant**Utah County****Defendant****American Fork City****Defendant****Spanish Fork City**

represented by **Heather S. White**
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

LaShel Shaw
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
06/24/2022	<u>1</u>	Case has been indexed and assigned to Magistrate Judge Dustin B. Pead. Plaintiff Michael Anthony Roy is directed to E-File the <u>Complaint and cover sheet</u> (found under Complaints and Other Initiating Documents) and pay the filing fee of \$ 402. by the end of the business day. NOTE: The court will not have jurisdiction until the opening document is electronically

		filed and the filing fee paid in the CM/ECF system. Civil Summons may be issued electronically. Prepare the summons using the courts PDF version and email it to utdecf_clerk@utd.uscourts.gov for issuance. (ks) (Entered: 06/24/2022)
06/24/2022	2	COMPLAINT against All Defendants (Filing fee \$ 402, receipt number AUTDC-4371594) filed by Michael Anthony Roy. (Attachments: # 1 Exhibit 1 - Investigative Report, # 2 Exhibit 2 - Photos, # 3 Civil Cover Sheet Civil Cover Sheet) Assigned to Magistrate Judge Dustin B. Pead (Sorensen, Christopher) (Entered: 06/24/2022)
06/27/2022	3	ORDER TO PROPOSE SCHEDULE - Plaintiff must propose a schedule to defendant in the form of a draft Attorney Planning Meeting Report within twenty-one (21) days after any defendant has been served or any defendant has appeared, unless any party is appearing pro se. See order for additional instructions. Signed by Magistrate Judge Dustin B. Pead on 6/25/22. (alf) (Entered: 06/27/2022)
07/01/2022	4	**RESTRICTED DOCUMENT**Summons Issued Electronically as to Zac Robinson. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/01/2022)
07/01/2022	5	**RESTRICTED DOCUMENT**Summons Issued Electronically as to Utah County. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/01/2022)
07/01/2022	6	**RESTRICTED DOCUMENT**Summons Issued Electronically as to Spanish Fork City. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/01/2022)
07/01/2022	7	**RESTRICTED DOCUMENT**Summons Issued Electronically as to Shaun Lott. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/01/2022)
07/01/2022	8	**RESTRICTED DOCUMENT**Summons Issued Electronically as to Doug Howell. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/01/2022)
07/01/2022	9	**RESTRICTED DOCUMENT**Summons Issued Electronically as to Brandon Johnson. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/01/2022)
07/01/2022	10	**RESTRICTED DOCUMENT**Summons Issued Electronically as to American Fork City. Instructions to Counsel: 1. Click on the document number.

		2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/01/2022)
07/15/2022	11	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Michael Anthony Roy as to Utah County served on 7/7/2022, answer due 7/28/2022. (Sorensen, Christopher) (Entered: 07/15/2022)
07/15/2022	12	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Michael Anthony Roy as to American Fork City served on 7/7/2022, answer due 7/28/2022. (Sorensen, Christopher) (Entered: 07/15/2022)
07/15/2022	13	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Michael Anthony Roy (Sorensen, Christopher) (Entered: 07/15/2022)
07/15/2022	14	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Michael Anthony Roy as to Brandon Johnson served on 7/7/2022, answer due 7/28/2022. (Sorensen, Christopher) (Entered: 07/15/2022)
07/15/2022	15	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Michael Anthony Roy as to Doug Howell served on 7/7/2022, answer due 7/28/2022. (Sorensen, Christopher) (Entered: 07/15/2022)
07/15/2022	16	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Michael Anthony Roy as to Shaun Lott served on 7/7/2022, answer due 7/28/2022. (Sorensen, Christopher) (Entered: 07/15/2022)
07/29/2022	17	Stipulated MOTION for Extension of Time to File Answer re 2 Complaint, filed by Defendants Brandon Johnson, Zac Robinson, Spanish Fork City. (Attachments: # 1 Text of Proposed Order) Attorney Heather S. White added to party Brandon Johnson(pty:dft), Attorney Heather S. White added to party Zac Robinson(pty:dft), Attorney Heather S. White added to party Spanish Fork City(pty:dft)(White, Heather) (Entered: 07/29/2022)
07/29/2022	18	ORDER granting 17 Motion for Extension of Time to Answer re 2 Complaint. Answer deadline updated for American Fork City, Doug Howell, Brandon Johnson, Shaun Lottand Utah County to 8/11/2022. Signed by Magistrate Judge Dustin B. Pead on 7/29/22. (alf) (Entered: 07/29/2022)
08/05/2022	19	NOTICE of Acceptance of Service by Zac Robinson re 2 Complaint, (White, Heather) (Entered: 08/05/2022)
08/05/2022	20	Modification of Docket re 19 Notice (Other) : Error: Document should have been filed using the event "Acknowledgment of Service" in order to set an answer deadline. Correction: Answer deadline updated. No further action is necessary, but please note for future reference. Filing a notice will not set an answer deadline.(alf) (Entered: 08/08/2022)
08/08/2022		ANSWER DEADLINE UPDATED for Zac Robinson - answer due 8/11/2022. (alf) (Entered: 08/08/2022)
08/11/2022	21	NOTICE of Appearance by LaShel Shaw on behalf of Brandon Johnson, Zac Robinson, Spanish Fork City (Shaw, LaShel) (Entered: 08/11/2022)
08/11/2022	22	Stipulated MOTION for Extension of Time to File Answer re 2 Complaint, filed by Defendants Brandon Johnson, Zac Robinson, Spanish Fork City. (Attachments: # 1 Text of Proposed Order)(White, Heather) (Entered: 08/11/2022)
08/15/2022	23	ORDER granting 22 Motion for Extension of Time to Answer re 2 Complaint. Answer deadline updated for Brandon Johnson, Zac Robinson and Spanish Fork City to 10/12/2022. Signed by Magistrate Judge Dustin B. Pead on 8/15/22. (alf) (Entered: 08/15/2022)

10/12/2022	<u>24</u>	Stipulated MOTION for Extension of Time to File Answer re <u>2</u> Complaint, filed by Defendants Brandon Johnson, Zac Robinson, Spanish Fork City. (Attachments: # <u>1</u> Text of Proposed Order)(White, Heather) (Entered: 10/12/2022)
10/13/2022	<u>25</u>	ORDER granting <u>24</u> Motion for Extension of Time to Answer re <u>2</u> Complaint. Answer deadline updated for Brandon Johnson, Zac Robinson and Spanish Fork City to 11/11/2022. Signed by Magistrate Judge Dustin B. Pead on 10/13/2022. (alf) (Entered: 10/13/2022)
11/16/2022	<u>26</u>	ORDER TO SHOW CAUSE. No later than November 30, 2022, Plaintiff is ORDERED TO SHOW CAUSE as to why the claims against Defendants Doug Howell, Shaun Lott, Utah County and Spanish Fork City should not be dismissed for failure to prosecute. Plaintiffs response shall include information on the current status of the case and Plaintiffs intentions to proceed. Signed by Magistrate Judge Dustin B. Pead on 11/16/2022. (alf) (Entered: 11/16/2022)
11/17/2022	<u>27</u>	STATUS REPORT <i>Plaintiffs Response to Order to Show Cause</i> by Michael Anthony Roy. (Sorensen, Christopher) (Entered: 11/17/2022)
12/07/2022	<u>28</u>	Redacted MOTION to Dismiss and Memorandum in Support filed by Plaintiff Michael Anthony Roy. (Attachments: # <u>1</u> Text of Proposed Order to Dismiss with Prejudice) (Sorensen, Christopher) Modified on 12/8/2022 - to strike "redacted" language. Motion does not appear to be redacted does appear to be stipulated (alf). (Entered: 12/07/2022)
12/08/2022	<u>29</u>	ORDER granting <u>28</u> Motion to Dismiss with Prejudice. Each party is to be its own costs and attorney fees. Case Closed. Signed by Magistrate Judge Dustin B. Pead on 12/8/2022. (alf) (Entered: 12/08/2022)

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